

Greenwich Millennium Village, Phases 3, 4 & 5

in the Royal Borough of Greenwich

planning application no. 12/0022/O

Strategic planning application stage II referral (new powers)

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008

The proposal

A mixed-use development comprising up to 1,746 flats and houses, local retail, commercial and community uses, submitted as a part-detailed, part-outline application.

The applicant

The applicant is **Greenwich Millennium Village Ltd.**, and the architects are **Jestico+Whiles, Studio 54** and **Peter Barber Architects**.

Strategic issues

The strategic issues raised at consultation stage with respect to **affordable housing, urban design, safeguarded wharves, transport** and **sustainable development** have been resolved, and the application now accords with the London Plan.

The Council's decision

In this instance Greenwich Council has resolved to grant permission, subject to conditions and written conclusion of a section 106 legal agreement.

Recommendation

That Greenwich Council be advised that the Mayor is content for it to determine the case itself, subject to any action that the Secretary of State may take, and does not therefore wish to direct refusal or direct that he is to be the local planning authority.

Context

1 On 17 January 2012 the Mayor of London received documents from Greenwich Council notifying him of a planning application of potential strategic importance to develop the above site for the above uses. This was referred to the Mayor under the following categories of the Schedule to the Order 2008:

- Category 1A: *"Development which comprises or includes the provision of more than 150 houses, flats, or houses and flats."*

- Category 1B: *“Development (other than development which only comprises the provision of houses, flats, or houses and flats) which comprises or includes the erection of a building or buildings (c) outside Central London and with a total floorspace of more than 15,000 square metres.”*
- Category 1C: *“Development which comprises or includes the erection of a building of one or more of the following descriptions — (a) the building is more than 25 metres high and is adjacent to the River Thames.”*

2 On 22 February 2012, Sir Edward Lister, Deputy Mayor and Chief of Staff, acting under delegated authority, considered planning report PDU/0519i/01, and subsequently advised Greenwich Council that, while the application was generally acceptable in strategic planning terms, the application did not comply with the London Plan for the reasons set out in paragraph 85 of the above-mentioned report, but that the possible remedies set out in paragraph 87 of that report could address those deficiencies.

3 A copy of the above-mentioned report is attached. The essentials of the case with regard to the proposal, the site, case history, strategic planning issues and relevant policies and guidance are as set out therein, unless otherwise stated in this report. On 23 February 2012 Greenwich Council decided that it was minded to grant planning permission, subject to conditions and written conclusion of a section 106 legal agreement, and on 9 March 2012 the Council notified the Mayor of this decision. Under the provisions of Article 5 of the Town & Country Planning (Mayor of London) Order 2008 the Mayor may allow the draft decision to proceed unchanged, direct Greenwich Council under Article 6 to refuse the application or issue a direction to Greenwich Council under Article 7 that he is to act as the Local Planning Authority for the purposes of determining the application. The Mayor has until 22 March 2012 to notify the Council of his decision and to issue any direction.

4 The decision on this case, and the reasons, will be made available on the GLA’s website www.london.gov.uk.

Update

5 At consultation stage Greenwich Council was advised that while the application was generally acceptable in strategic planning terms, the application did not comply with the London Plan for the reasons set out in paragraph 85 of the above-mentioned report, but that the possible remedies set out in paragraph 87 of that report could address these strategic issues:

- **Affordable housing:** Further testing of the applicant’s viability assessment was required to determine whether additional affordable housing could be provided (especially family housing) in line with London Plan policies 3.11 and 3.12. Future opportunities for re-assessment of scheme viability, linked to phasing, were also sought to ensure a possible increase in sales values over time could be translated into additional on site affordable housing.
- **Urban design:** Confirmation of the status of the design guidelines was sought to ensure a firm commitment to achieving a suitably high standard of design quality at the detailed stage in line with London Plan Policy 7.1. A commitment was also sought to reconsider the connectivity of the development, through a redesign of the block layout on the western edge of the scheme. Redesign or justification was also sought with respect to the relationship between public and private space where dwellings would abut the street.
- **Safeguarded wharves:** The incorporation of suitable mitigation measures, as set out in the acoustic design report, should be secured by planning condition or legal agreement, as appropriate, to ensure accordance with London Plan Policy 7.26.

- **Transport:** Clarifications and commitments were sought with respect to monitoring of parking standards, parking provision, provision of electric vehicle charging points, contributions towards public transport enhancements, improvements to the Thames Path, improved cycle parking at North Greenwich station, site-wide signage, construction logistics plan and delivery and servicing plan to ensure accordance with London Plan policies 6.7, 6.9, 6.10, 6.13 and 6.14.
- **Sustainable development:** The applicant was asked to confirm that all apartments and non-domestic buildings would be connected to the heat network to ensure accordance with London Plan Policy 5.6.

6 Since these representations were made further information and commitments have been provided in response to the above issues. An updated assessment against the previous concerns raised is set out under the corresponding headings below.

Affordable housing

7 At consultation stage officers sought an assessment of scheme viability to demonstrate that the proposed provision of affordable housing was the maximum that the scheme could reasonably deliver. Since these representations were made the Council has conducted a detailed assessment of scheme viability, and the applicant has submitted an updated financial assessment. Following this assessment, and subsequent negotiations, the housing schedule within parcel 1 has been revised slightly, and various commitments across the wider scheme have been secured. An updated housing schedule for parcel 1 is provided below.

	One bedroom	Two bedroom	Three bedrooms	Four bedrooms	Total
Private (market) tenure	99	156	76	15	346 (75%)
Social rented	22	38	20	0	80 (18%)
Shared ownership (intermediate)	14	19	0	0	33 (7%)
Total	135	213	96	15	459

8 Whilst retaining the same number of units overall, the revision results in an increase of five social rented dwellings and three intermediate units, and a corresponding decrease of eight private market units. Within the social rented component the revision would result in the introduction of three additional one-bedroom units, two additional two-bedroom units, one additional three-bedroom unit and the loss of one four-bedroom unit. Within the intermediate provision the revision would result in the introduction of one additional one-bedroom unit and two additional two-bedroom units. Within the private market provision the reduction would result in a reduction of four one-bedroom units and four two-bedroom units.

Maximum reasonable amount

9 Since consultation stage the scheme's financial viability has been independently assessed. Based on the findings of this assessment, and subsequent negotiations with the applicant, the Council has secured an eight unit uplift (2%) in affordable housing within parcel 1. This phase of the development would now achieve a 25% provision of affordable housing. In addition, officers note that a minimum benchmark of 20% affordable housing provision will be secured, within the section 106 legal agreement, across the scheme as a whole. The Council states within its committee

10 Given the likely timescales associated with this development, and the potential for market conditions to improve between the time when permission is granted and the various phases are implemented, the Council has sought to secure a mechanism for capturing any uplift in sales values in order to fund additional on-site affordable housing. To this end the Council intends to secure re-appraisals of the scheme at each reserved matters stage, as part of the section 106 legal agreement. Officers have had the opportunity to review the relevant draft clauses of the agreement and the proposed approach is supported in response to representations made at consultation stage. The application is now in accordance with London Plan Policy 3.12.

Affordable family dwellings

11 At consultation stage officers sought assurance that the scheme would, within the constraints of viability, prioritise affordable family housing in line with the strategic objectives of the London Plan.

12 The revised housing schedule for parcel 1, developed following local viability negotiations, maintains the same number of affordable family dwellings (20 units). It is, nevertheless, noted that the revision would result in the substitution of a four-bedroom social rented unit with a three-bedroom social rented unit – resulting in the loss of the only four-bedroom social rented unit within parcel 1.

13 The fact that parcel 1 would no longer include an affordable four-bedroom unit is disappointing. However, the Council states within its committee report that this site is expected to respond to housing need within the borough by providing higher density residential dwellings, rather than a high proportion of family accommodation. Therefore, within the context of scheme viability, and local housing need, the lack of four-bedroom social rented units within the detailed component of the scheme represents an acceptable trade off for increasing the overall level of affordable housing within parcel 1 to 25%.

14 It is noted that across the remainder of the scheme the development would deliver a 33% provision of family units. The affordable component of this provision will be maximised in line with strategic priorities following further financial reviews and viability appraisals at successive reserved matters stages (via the mechanism described in paragraph 10). Officers are now content the application accords with London Plan Policy 3.11.

Urban design

15 At consultation stage officers welcomed the nature and level of detail submitted in support of the outline application. However, in the absence of a standalone design code, officers sought assurance that the necessary detail and documentation would be taken forward and applied as a design framework for subsequent detailed applications.

16 The applicant has subsequently stated that it is committed to providing high quality design for this scheme. Officers also note that the Council has included planning conditions to ensure the development is carried out in accordance with approved plans, and to require submission of a detailed design guide, in substantial accordance with the design and access statement accompanying this outline application, prior to the submission of the first reserved matters application. This is supported.

Layout

17 At consultation stage the aspiration of the scheme to provide a high degree of permeability within an intentionally informal and irregular grid structure was broadly supported. However,

18 In response to these representations the applicant has agreed to reconsider this relationship, and officers note that the Council has secured a planning condition requiring revised matters applications in this portion of the site to include a reassessment of connectivity to the adjacent urban fabric. This is supported.

Public/private space

19 At consultation stage concern was raised that some of the ground floor dwellings would not benefit from defensible space on all active frontages, which would potentially be detrimental to the privacy and residential quality of these homes.

20 In response to these representations the applicant has agreed to review the relationship between public and private spaces within affected parts of the scheme, in order to identify and remove possible conflicts between public and private space. Officers note that the Council intends to impose a planning condition to secure this assessment, and the implementation of resolutions (subject to local approval), prior to commencement. This is supported.

Urban design summary

21 The concerns raised a consultation stage have been resolved and the proposed design approach is supported in accordance with London Plan Policy 7.1.

Safeguarded wharves

22 At consultation stage the proposed response to managing noise impacts on the development from adjacent safeguarded wharves was broadly supported. Officers were satisfied that the creation of an 'acoustic shield', through the arrangement of barrier blocks along the northern and eastern edges of the site, would minimise the potential impacts on residential amenity across the site as a whole. Nevertheless, officers sought to ensure that appropriate mitigation measures for the individual dwellings themselves, as identified within the submitted acoustic design report, would be secured by planning condition or legal agreement.

23 Since consultation stage the applicant has submitted a safeguarded wharves report which seeks to specifically identify how the proposed development has been designed in relation to the safeguarded wharves of Angerstein and Murphy's Wharves, with particular regard to issues of noise, air quality and light pollution. This is supported. Port of London Authority welcomed the production of the document, and provided a number of comments on the report. Those comments are summarised within paragraph 38 of this report.

24 Following the Deputy Mayor's representations, the applicant has continued to engage with Port of London Authority, wharf operators and the Council in order to agree the wording of appropriate planning conditions to secure the necessary mitigation measures required. Based on subsequent correspondence the GLA understands that following a joint meeting on 23 February 2012, the wharf operators, Port of London Authority, Council and applicant have agreed mutually acceptable wording of four planning conditions with respect to noise and air quality. Officers note that these conditions have been included within the draft decision notice, and on this basis are satisfied that the application accords with London Plan Policy 7.26.

Transport

25 Whilst TfL was supportive of the proposed reduction in residential car parking provision at consultation stage, it was recommended that a monitoring and review mechanism be included in the Travel Plan and section 106 legal agreement, to allow car parking spaces to be redesigned as cycle parking facilities, should demand for car parking be lower than expected. It was also advised that electric vehicle charging points would need to be provided in accordance with London Plan standards. TfL additionally requested that the transport improvements secured as part of the extant permission be retained as part of these revised proposals, and that in addition, a construction logistics plan, delivery and servicing plan, car parking management plan, and travel plan all be secured either by condition or planning agreement.

26 TfL supports the consideration within the Council's committee report, and the subsequent draft decision notice which includes planning conditions to secure the requirement for details of: a construction logistics plan; delivery and servicing plan; car parking spaces; cycle parking spaces; provision of electric vehicle charging points in accordance with London Plan standards; traffic calming measures; road markings; signage; street lighting; highway trees; and, the proposed cycle routes linking to the existing network, to be submitted and approved by the local planning authority prior to commencement/first occupation on site.

27 The transport related planning obligations contained within the draft section 106 heads of terms are also supported. TfL is content these reflect what was secured as part of the previous application for the site, and include: £750,000 contribution towards bus improvements and £400,000 contribution towards other public transport improvements; the implementation of a travel plan; the provision of car club spaces; the implementation of a car park management plan; a mechanism to review and possibly reduce car parking provision for both the residential and non-residential uses; improvements to (or financial contribution towards) pedestrian links and crossings including at West Parkside, Bugsby's Way and Pear Tree Way and pedestrian links to Westcombe Park station; a contribution towards cycle parking facilities at North Greenwich Interchange; a contribution towards upgrading the riverside walk; and, car parking provision for the yacht club.

28 In summary, officers are satisfied that the previous concerns raised have been adequately addressed, and the application now accords with London Plan policies 6.7, 6.9, 6.10, 6.13 and 6.14.

Sustainable development

29 At consultation stage the applicant was asked to confirm that all apartments, as well as non-domestic buildings, would be connected to the proposed site-wide energy network. The applicant has since provided this confirmation and the Council has secured approval of details of the on-site combined heat and power network by way of planning condition. Officers are now content that the application accords with London Plan Policy 5.6.

30 Officers also note the Council has imposed planning conditions securing accordance with the approved energy strategy, including details with respect to Code for Sustainable Homes level four, connection to district heating, on-site combined heat and power, and savings from renewable energy. This is strongly supported.

Response to consultation

31 Greenwich Council publicised the application by sending notifications to residents, business and local groups in the vicinity of the site, and issuing site and press notices. The relevant statutory bodies were also consulted.

32 The representations received in response to the Council's local consultation process are considered in detail within the Council's committee report, and all representations have been made available to the Mayor.

Responses from local residents

33 In response to the public consultation the Council received one letter of objection from a local resident. In summary, the response raises an objection with respect to the height of the proposed twenty-storey building, and its impact on context in terms of both visual and environmental amenity.

Responses from statutory bodies, local businesses and other organisations

34 Environment Agency raised no objection, but sought planning conditions with respect to surface water drainage, finished floor levels, management of contamination risks and verification of decontamination. Officers note that these matters are addressed within the draft decision notice.

35 Thames Water raised no objection but sought to ensure conditions were imposed to secure a drainage strategy and a water supply impact study. Thames Water also made recommendations and provided informatives with respect to surface water drainage, fat traps, petrol/oil interceptors, public sewers and piling. Officers note that these matters are addressed within the draft decision notice.

36 Walker Beak Mason, on behalf of the adjacent wharf operators, provided a technical note with observations on noise from the safeguarded wharves, and its relation to receptors within the proposed development. Walker Beak Mason sought assurance, on behalf of its clients, with respect to the wording, and compliance testing, of planning conditions associated with noise mitigation. Following these representations the wharf operators, Port of London Authority, Council and applicant have agreed mutually acceptable wording of four planning conditions with respect to noise and air quality (refer to paragraph 24). Officers note that these conditions are included within the draft decision notice.

37 Aggregate Industries withdrew a previous objection to the scheme on the basis that an appropriate condition with respect to air quality and air intakes would be secured by the Council. Aggregate Industries also sought to ensure it would be consulted at detailed the design stage. Officers note that the relevant condition has been included within the draft decision notice.

38 Port of London Authority did not raise an objection, but provided detailed comments in response to the applicant's Safeguarded Wharves Report. These are addressed in detail within the Council's planning committee report, but in summary, Port of London Authority sought to ensure that: appropriate mitigation measures would be in place to protect the operation of safeguarded wharves; car parking on Horn Link Way would not restrict heavy goods vehicle access; the positioning of cranes would not affect navigability of the River Thames; and, that use of the river for transport of bulk materials would be maximised. Officers note that the Council will address these matters through planning conditions to secure mitigation measures, car parking management plan, demolition/construction method statement and construction logistics plan. An informative has been provided with respect to cranes and scaffolding, and officers also understand the section 106 legal agreement will include specific clauses to maximise river transportation of materials, and to financially compensate Port of London Authority for impacts on its navigational equipment.

39 Design Council CABE broadly supported the design approach, including the principle of a tall building at the site, and provided detailed comments with respect to masterplan approach, planning strategy, streets and spaces, the detailed application and environmental sustainability. The Council considers these representations in detail within its committee report.

40 English Heritage raised no objection but sought the inclusion of a planning condition and informative to manage potential archaeological interests at the site. Officers note that the draft decision notice includes the relevant condition and informative.

41 Southern Gas Networks raised no objection, but identified the presence of a gas main running across the site and provided informatives with respect to managing excavation works and development within the vicinity. Officers note that these have been included within the draft decision notice.

42 London City Airport raised no objection but sought the inclusion of panning conditions/informatives with respect to maximum structure height, landscaping (to manage bird attraction) and noise. Officers note that these matters are addressed within the draft decision notice.

43 Health and Safety Executive raised no objection.

44 Natural England raised no objection but provided comments and informatives with respect to protected species and biodiversity enhancements. The Council takes these into account within its planning committee report, and has included a planning condition within the draft decision notice to secure an ecological management plan for the development.

45 The Land Trust welcomed many elements of the scheme, but raised concern with regard to scale of development adjacent to Greenwich Peninsula Ecology Park, and resulting impacts with respect to overshadowing and a perceived impact on visual amenity. The Council addresses these matters within its planning committee report. With respect to overshadowing the Council notes that whilst the Ecology Park would experience a varying degree of overshadowing, no permanent over shadowing would occur, and the impact of the proposal once completed would be acceptable. Nevertheless, the Council has secured a planning condition requiring further overshadowing analysis for parcel 2 of the development, which is adjacent to the Ecology Park. With respect to the perceived impact on visual amenity, the Council is content the proposal would not visually detract from the Ecology Park.

46 Metropolitan Police raised no objection, but sought the inclusion of a planning condition requiring Secured by Design certification. Officers note that an associated condition has been included within the draft decision notice.

47 Greenwich Millennium Village Association generally supported the application, but raised concerns with respect to the scale of development adjacent to the Ecology Park, response to context, and impacts of overshadowing.

48 Greenwich Conservation Group did not raise an objection in principle, but raised concerns with respect to density, affordable housing provision, family housing provision, nature of uses, scale of development, car parking, construction traffic, bus routes, block layout and sustainability. The Council considers these concerns in detail within its planning committee report.

49 Greenwich Society expressed strong support for the development of Millennium Village Phase 3, 4 and 5, and in principle support for the hybrid application. However, Greenwich Society raised concerns with respect to density, scale, block design, materials detail, affordable housing provision, family housing provision, delivery of community facilities, access to public transport and absence of temporary uses. The Council considers these concerns in detail within its planning committee report.

Summary

50 The statutory and non-statutory responses to the Council's consultation do not raise any material planning issues of strategic importance that have not already been considered at consultation stage, and/or in this report.

Article 7: Direction that the Mayor is to be the local planning authority

51 Under Article 7 of the Order the Mayor could take over this application provided the policy tests set out in that Article are met. In this instance the Council has resolved to grant permission with conditions and a planning obligation, which satisfactorily addresses the matters raised at consultation stage, therefore, there is no sound planning reason for the Mayor to take over this application.

Legal considerations

52 Under the arrangements set out in Article 5 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor has the power under Article 6 to direct the local planning authority to refuse permission for a planning application referred to him under Article 4 of the Order. He also has the power to issue a direction under Article 7 that he is to act as the local planning authority for the purpose of determining the application and any connected application. The Mayor may also leave the decision to the local authority. In directing refusal the Mayor must have regard to the matters set out in Article 6(2) of the Order, including the principal purposes of the Greater London Authority, the effect on health and sustainable development, national policies and international obligations, regional planning guidance, and the use of the River Thames. The Mayor may direct refusal if he considers that to grant permission would be contrary to good strategic planning in Greater London. If he decides to direct refusal, the Mayor must set out his reasons, and the local planning authority must issue these with the refusal notice. If the Mayor decides to direct that he is to be the local planning authority, he must have regard to the matters set out in Article 7(3) and set out his reasons in the direction. The Mayor must also have regard to the guidance set out in GOL circular 1/2008 when deciding whether or not to issue a direction under Articles 6 or 7.

Financial considerations

53 Should the Mayor direct refusal, he would be the principal party at any subsequent appeal hearing or public inquiry. Government guidance in Circular 03/2009 (*'Costs Awards in Appeals and Other Planning Proceedings'*) emphasises that parties usually pay their own expenses arising from an appeal.

54 Following an inquiry caused by a direction to refuse, costs may be awarded against the Mayor if he has either directed refusal unreasonably; handled a referral from a planning authority unreasonably; or behaved unreasonably during the appeal. A major factor in deciding whether the Mayor has acted unreasonably will be the extent to which he has taken account of established planning policy.

55 Should the Mayor take over the application he would be responsible for holding a representation hearing and negotiating any planning obligation. He would also be responsible for determining any reserved matters applications (unless he directs the council to do so) and determining any approval of details (unless the council agrees to do so).

Conclusion

56 The strategic issues raised at consultation stage with respect to affordable housing, urban design, safeguarded wharves, transport and sustainable development have been resolved, and the application now accords with the London Plan.

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Greenwich Millennium Village, Phases 3, 4 & 5

in the Royal Borough of Greenwich

planning application no. 12/0022/O

Strategic planning application stage 1 referral (new powers)

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008

The proposal

A mixed-use development comprising up to 1,746 flats and houses, local retail, commercial and community uses, submitted as a part-detailed, part-outline application.

The applicant

The applicant is **Greenwich Millennium Village Ltd**, and the architects are **Jestico+Whiles**, **Studio 54** and **Peter Barber Architects**.

Strategic issues

The development and its **mix of uses** is acceptable in principle. The **design** of the proposal takes account of residential amenity and the continuing operation of the adjacent **protected wharves** through the creation of a **tall building** acoustic screen. Other mitigation should also be secured. Although the design is appropriate, there are some outstanding issues regarding connectivity and housing standards. Further testing of **affordable housing** viability is needed, particularly with regard to the low level of family housing.

There are outstanding issues regarding **transport and parking** and **sustainable development** (energy), but other issues (including **housing**, **access** and **biodiversity**) are acceptable.

Recommendation

That the Greenwich Council be advised that while the application is generally acceptable in strategic planning terms the application does not comply with the London Plan, for the reasons set out in paragraph 85 of this report; but that the possible remedies set out in paragraph 87 of this report could address these deficiencies.

Context

1 On 17 January 2012, the Mayor of London received documents from Greenwich Council notifying him of a planning application of potential strategic importance to develop the above site for the above uses. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008 the Mayor has until 27 February 2012 to provide the Council with a statement setting out whether he considers that the application complies with the London Plan,

2 The application is referable under the following categories of the Schedule to the Order 2008:

- Category 1A: Development which comprises or includes the provision of more than 150 houses, flats, or houses and flats.
- Category 1B: Development (other than development which only comprises the provision of houses, flats, or houses and flats) which comprises or includes the erection of a building or buildings (c) outside Central London and with a total floorspace of more than 15,000 square metres.
- Category 1C: Development which comprises or includes the erection of a building of one or more of the following descriptions — (a) the building is more than 25 metres high and is adjacent to the River Thames;

3 Once Greenwich Council has resolved to determine the application, it is required to refer it back to the Mayor for his decision as to whether to direct refusal; take it over for his own determination; or allow the Council to determine it itself.

4 The environmental information for the purposes of the Town and Country Planning (Environmental Impact Assessment) (England and Wales) Regulations 1999 has been taken into account in the consideration of this case.

5 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

6 Greenwich Millennium Village (GMV) is located on the Greenwich Peninsula and extends to approximately 24 hectares. It is bounded by John Harrison Way, New Horn Lane, Bugsbys Way and the River Thames. The site has a relatively recent planning history, as set out in the applicant's letter to the GLA dated 11 July 2011, and benefits from extant outline permission.

7 The land to the south is an aggregates zone which is served by a railhead. To the south of the site there is a retail/leisure development including a Sainsbury's superstore and a multiplex cinema. To the north west of the site lies the O2 Dome and surrounding development. The first phases of the GMV development, which are fully constructed and settled, face the site from the north and west, across Southern Park and Greenwich Ecology Park, which is designated Metropolitan Open Land. The site is also adjacent to the Greenwich Yacht Club, which is situated on the river, to the north of the site.

8 The application site comprises 11.57 hectares and is located between Southern Park, the Ecology Park, Bugsby's Way and New Horn Lane. Angerstein and Murphy's Wharves (which are designated as protected wharves in the London Plan) lie directly to the east of the application site.

9 The site is located east of the Blackwall Tunnel, which forms part of the Transport for London Road Network (TLRN). The nearest section of the Strategic Road Network (SRN) is the A206 Woolwich Road, located 900m to the south of the site. The site is located approximately 1.7 km north east of Greenwich town centre, which provides interchange with the Docklands Light Railway, as well as National Rail services. The nearest London Underground station is North

Details of the proposal

10 The applicant seeks outline planning permission for up to 1,746 flats and houses, up to 1,190 sq.m. of service retail uses (A1 shop, A2 services, A3 restaurant/cafe uses and A4 pub uses), up to 4,462 sq.m. of employment (B1) floorspace, up to 1,250 sq.m. of D1/D2 (community/nursery) uses, together with associated infrastructure. The proposal incorporates significant street and public realm infrastructure. All matters, except for access, are reserved for future detailed approval.

11 The outline masterplan is divided into five parcels. The first of these is the subject of an application for detailed planning permission, and comprises 459 homes (included in the figure stated in the previous paragraph).



Above: Proposed masterplan layout, with parcel 1 (the subject of detailed permission) coloured blue. Source: applicant's design and access statement.

Case history

12 The site as a whole (including the first phases of the GMV development) has been the subject of several planning applications referred to the Mayor, but the most significant is an outline application for a residential-led development comprising 1,843 dwellings, referred in 2005. This was approved by the Council in 2007 and subject to a legal agreement, with the approval valid for seven years. This approval is extant.

13 An application for detailed matters on part of the site was submitted to the Council in 2007, and approved in 2008. However this decision was challenged by the Port of London Authority and adjoining operators of the aggregates site, utilising the protected wharf. Reasons for the challenge included that the Council's assessment of the environmental impact of the development was flawed, that mitigation had not been properly designed, and that consultation was not carried out correctly. The planning permission for the detailed scheme was quashed

14 The current application is for a new scheme, independent of the extant outline permission, and is the outcome of a design competition that sought to address the environmental challenges of the site and its location.

Strategic planning issues and relevant policies and guidance

15 The relevant issues and corresponding policies are as follows:

- | | |
|---------------------------|---|
| • Mix of uses | <i>London Plan</i> |
| • Housing | <i>London Plan; PPS3; Housing SPG; Providing for Children and Young People's Play and Informal Recreation SPG, Housing Strategy; draft Revised Housing Strategy; Interim Housing SPG; draft Housing SPG</i> |
| • Affordable housing | <i>London Plan; PPS3; Housing SPG, Housing Strategy; draft Revised Housing Strategy; Interim Housing SPG; draft Housing SPG; Affordable Rent draft SPG; draft Early Minor Alteration to the London Plan</i> |
| • Tall buildings/views | <i>London Plan; RPG3A, Revised View Management Framework SPG; revised draft View Management Framework</i> |
| • Urban design | <i>London Plan; PPS1</i> |
| • Density | <i>London Plan; PPS3; Housing SPG; Interim Housing SPG; draft Housing SPG</i> |
| • Access | <i>London Plan; PPS1; Accessible London: achieving an inclusive environment SPG; Planning and Access for Disabled People: a good practice guide (ODPM)</i> |
| • Safeguarded wharves | <i>London Plan; London Plan Implementation Report "Safeguarded Wharves on the River Thames"; Safeguarded Wharves review</i> |
| • Ambient noise | <i>London Plan; the Mayor's Ambient Noise Strategy; PPG24</i> |
| • Transport | <i>London Plan; the Mayor's Transport Strategy; PPG13</i> |
| • Parking | <i>London Plan; Assembly draft Early Minor Alteration to the London Plan; the Mayor's Transport Strategy; PPG13</i> |
| • Biodiversity | <i>London Plan; the Mayor's Biodiversity Strategy; PPS9; draft PPS Planning for a Natural and Healthy Environment; draft London's Foundations (Geodiversity) SPG</i> |
| • Sustainable development | <i>London Plan; PPS1, PPS1 supplement; PPS3; PPG13; PPS22; draft PPS Planning for a Low Carbon Future in a Changing Climate; Mayor's Climate Change Mitigation Strategy; Mayor's Climate</i> |

16 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area is the 2006 Greenwich Unitary Development Plan and the 2011 London Plan.

17 The following are also relevant material considerations:

- The Greenwich Core Strategy with Development Management Policies Development Plan Document (Preferred Options Stage).
- The Greenwich Peninsula Opportunity Area Planning Framework.
- The Early Minor Alteration to the London Plan

Mix of uses

18 The proposed development is residential-led. The level of non-residential uses to be provided in support of the predominant residential use is relatively low, providing local support for retail and other services, in recognition of the existing retail and commercial uses elsewhere on the peninsula. The provision accords with policy 7.1 of the London Plan, which seeks to provide sustainable communities.

Housing

19 Housing provision within the scheme is currently indicative across the outline elements of the scheme, and set within the detailed portion of the scheme. The provision within the overall scheme (including the outline and detailed areas) is set out below:

Unit type	Parcel 1 (detailed)	Parcel 2 (outline)	Parcel 3 (outline)	Parcel 4 (outline)	Parcel 5 (outline)	Total provision
One-bedroom flats	135	80	41	68	26	350 (20%)
<i>Two-bedroom flats</i>	<i>216</i>	<i>294</i>	<i>107</i>	<i>165</i>	<i>76</i>	<i>858</i>
<i>Two-bedroom houses</i>	<i>0</i>	<i>1</i>	<i>0</i>	<i>0</i>	<i>1</i>	<i>2</i>
Two bedroom total	216	295	107	165	77	860 (49%)
<i>Three-bedroom flats</i>	<i>85</i>	<i>50</i>	<i>76</i>	<i>155</i>	<i>25</i>	<i>391</i>
<i>Three-bedroom houses</i>	<i>8</i>	<i>2</i>	<i>3</i>	<i>0</i>	<i>2</i>	<i>15</i>
Three bedroom total	93	52	79	155	27	406 (23%)
<i>Four-bedroom flats</i>	<i>0</i>	<i>0</i>	<i>12</i>	<i>46</i>	<i>10</i>	<i>68</i>
<i>Four-bedroom houses</i>	<i>15</i>	<i>19</i>	<i>22</i>	<i>0</i>	<i>6</i>	<i>62</i>

Four bedroom total	15	19	34	46	16	130 (7%)
Total	459 (26%)	446 (26%)	261 (15%)	434 (25%)	146 (8%)	1,746

20 A clearer breakdown of the dwelling provision within the detailed portion of the scheme (parcel 1) is shown in the following table:

Unit type	Number	Proportion of total
One-bedroom flat	135	29.4%
Two-bedroom flat	216	47.1%
Three-bedroom flat	85	18.5%
Subtotal	436	95%
Three-bedroom house	8	1.7%
Four-bedroom house	15	3.3%
Subtotal	23	5%
Total	459	100%

21 The level of family housing proposed across the site would be approximately 30% of total dwelling provision, in a mix of flats and houses. In the detailed stage 1, the level of family accommodation would represent 23.5% of housing. This lower figure can be justified by the higher number of flats being constructed in this stage, for which there is an acceptable design reason. Mayoral policy does not set a target level for the provision of family accommodation across all tenures, but does recognise that its provision is a strategic priority. As such, the level of provision is considered appropriate.

Children's play space

22 Policy 3.6 of the London Plan sets out that "development proposals that include housing should make provision for play and informal recreation, based on the expected child population generated by the scheme and an assessment of future needs." Using the methodology within the Mayor's supplementary planning guidance 'Providing for Children and Young People's Play and Informal Recreation' it is anticipated that, for the first stage of the development, there will be approximately 157 children. The guidance sets a benchmark of 10 sq.m. of useable child playspace to be provided per child, with under-5 child playspace provided on-site. As such the development should make provision for 1,570 sq.m. of playspace available to occupants of the first parcel.

23 The applicant's calculations for a likely tenure mix across the rest of the site suggest that 791 children would be resident. As such, the development should make provision for 7,910 sq.m. across the site in total.

24 The applicant states that the development would provide 8,692 sq.m. of new doorstep and local play space, although this includes some space designated as swale, which GLA would not consider suitable as play space. However, given the availability and proximity of the existing 9,270 sq.m. of play space which abuts the site, the level and quality of play space provision within the scheme is acceptable.

Affordable housing

25 London Plan Policy 3.12 requires borough councils to seek the maximum reasonable amount of affordable housing when negotiating on individual private residential and mixed-use schemes. In doing so each council should have regard to its own overall target for the amount of affordable housing provision. This target should take account of the requirements of London Plan Policy 3.11, which include the strategic target that 60% of new affordable housing should be for social rent and 40% for intermediate rent or sale. The Mayor has published an early minor alteration to the London Plan to address the introduction of affordable rent, with further guidance set out in a draft Affordable Rent SPG. With regard to tenure split the Mayor's position is that both social rent and affordable rent should be included within the 60%.

26 While the Mayor has set a strategic investment benchmark that across the affordable rent programme as a whole rents should average 65% of market rents, this is an average investment output benchmark for this spending round and not a planning policy target to be applied to negotiations on individual schemes.

27 Policy 3.12 is supported by paragraph 3.71, which urges borough councils to take account of economic viability when estimating the appropriate amount of affordable provision. The 'Three Dragons' development control toolkit or other recognised appraisal methodology is recommended for this purpose. The results of a toolkit appraisal might need to be independently verified. Paragraph 3.75 highlights the potential need for re-appraising the viability of schemes prior to implementation. The emerging target within the Greenwich LDF is 35% provision of affordable housing, based on total housing provision.

28 Of the 459 homes to be provided within the detailed component of the scheme, 105 would be provided as affordable housing. This provision is set out within the table below. 85 of these would be supported by grant funding from the HCA/GLA. The total level of affordable housing, incorporating social rented and intermediate housing, represents 23% of the detailed element (parcel 1), or 6% of the total level of housing to be provided on the wider site. It is understood that the majority of the social rented element of the scheme would be delivered in the first phase with the assistance of grant funding from the HCA, and that the social element of later phases would comprise a majority of affordable rent.

	One bedroom	Two bedroom	Three bedrooms	Four bedrooms	Total
Private (market) tenure	103	160	76	15	354 (77%)
Social rented	19	36	19	1	75 (16%)
Shared ownership (intermediate)	13	17	0	0	30 (7%)
Total	135	213	95	16	459

29 Of the later stages of development (outline component), the applicant's housing viability assessment assumes that an affordable housing level of 16% could be provided across the remaining stages. This level assumes no grant funding.

30 The proposed level of affordable housing provision and the provision of affordable housing grant within the detailed phase is supported. However the level of affordable housing to be provided across the site as a whole is low, and the Mayor would expect the section 106 agreement

31 The proposed tenure split of 70:30 affordable/social rented to intermediate housing, as provided on stage one and expected to be reflected within further stages, is in accordance with local policy, and is supported.

Tall buildings / views

32 London Plan (2011) policy 7.7, which relates to the specific design issues associated with tall and large-scale buildings, is of particular relevance to the proposed scheme. This policy sets out specific additional design requirements for tall and large-scale buildings, which are defined as buildings that are significantly taller than their surroundings and/or have a significant impact on the skyline and are larger than the threshold sizes set for the referral of planning applications to the Mayor.

33 The proposal includes several tall buildings, perhaps more than could normally be expected in an urban/suburban location such as this one. Certainly, with regards to views, the impression would be that the development has a large scale, given the fact that tall buildings would surround the smaller-scale development in the centre of the site. There are sound design reasons for the locations of the tall buildings, not least the need to provide acoustic screening to protect the activities of the safeguarded wharf, and residential amenity. The applicant has produced a views assessment to demonstrate the impact of the tall buildings. This considers the impact of the scale of the proposal on views from the river and Metropolitan Open Land (Southern Park).

34 The initial concepts of the Greenwich Millennium Village proposed development of a reasonably large scale on both sides of the focal Metropolitan Open Land. While the siting of tall buildings in this location would have a significant impact on the existing character and openness of the park, this is a planned impact and would not be detrimental. When viewed from other points around the peninsula, including the riverside, the development would form part of the existing and emerging context of tall buildings within the area, and would not be detrimental. The greatest potential for a detrimental impact is within views from the northern bank of the Thames, with the long, tall building form abutting the protected wharf being clearly visible at a significant scale, compared with its surroundings. However this part of the application has been submitted in detailed format, and GLA officers are satisfied that the detail of the building, through its massing and appearance, mitigates any potentially detrimental impact.

35 The development would potentially be visible within the extreme eastern element of the London Panorama view from the General Wolfe statue in Greenwich Park. This is a view identified within the London View Management Framework as being of strategic importance to London. The development would appear as part of the emerging townscape of the area, and owing to its position at the edge of the view, partially obscured by existing vegetation within the park, would not draw attention away from the main focus points within the view (which include the Old Royal Naval College, and clusters of tall buildings on the Isle of Dogs). Visibility of the development within other London Panorama views would be low, owing to distance and the relatively small scale of the development when viewed from these points. This proposal therefore has no negative impact on strategic views.

Urban design / density

36 Good design is central to all objectives of the London Plan (2011) and is specifically promoted by the policies contained within chapter seven which address both general design principles and specific design issues. London Plan Policy 7.1 sets out a series of overarching design principles for development in London. Other design policies in this chapter and elsewhere in the London Plan include specific design requirements relating to maximising the potential of sites, the quality of new housing provision, tall and large-scale buildings, built heritage and World Heritage Sites, views, the public realm and the Blue Ribbon Network. New development is also required to have regard to its context, and make a positive contribution to local character within its neighbourhood (policy 7.4).

Scale and general principles

37 The scale of the western side of the site relates well to the existing, initial phases of the GMV development. The development would face the existing phases of the development, across the park, with a series of perimeter blocks of between eight and eleven storeys. Moving to the east through the centre of the site, the scale is reduced with a typology comprising blocks of houses with end-block flatted blocks of up to six storeys. This provides for a mix of scale and type of accommodation across the development, which is welcomed. The tallest buildings on the site would be the proposed tower building at the northern edge of the site, which would have a height of up to 20 storeys, and the acoustic barrier blocks on the eastern boundary of the site, which would be eleven storeys. The tallest buildings on the site are generally located adjacent to the largest open spaces, which represents a rational approach to planning the site.

38 The phasing sequence is supported and the justification for the construction of the eastern block in the first phase (incorporating acoustic and market considerations), with the tower not included in this phase, is accepted.

39 The proposal would have a residential density of 150 dwellings per hectare when measured across the site, although the density of the detailed element would be higher owing to the greater scale of development here. This is an appropriate range for this location and accessibility level, as set out in table 3.2 of the London Plan. The acceptable standard of the scheme's design demonstrates that this density can be sustainably accommodated.

40 The applicant proposes a transitional area on the eastern park edge which would also act as an ecology and swale area. This is supported, and the role of this area as a privacy buffer between the active recreational uses and housing would be welcomed. The rough symmetry of enclosure between the eastern and western edges of the park and the similar building forms and themes would help to demonstrate that the two edges belong to the same development, and would be preferable to piecemeal enclosure. The non-residential uses on the ground floor of the eastern-edge buildings opening onto the park are community-based and as such would be suitable as facing uses.



Above: Proposed heights across the scheme. Source: Outline parameter plan.

41 Along the eastern boundary is an eleven-storey barrier block that provides acoustic screening for the remainder of the development. An impression of bulkiness in views will remain unavoidable, although the appearance and massing of the block goes some way to mitigating the impact of this block, as discussed within the appearance section below. The submission of this element of the design in detailed format is welcomed, as is their contrast with the relatively slim form of the tower.

42 The level of detail provided within the outline of the scheme is welcomed, although there is some ambiguity regarding the status of the design guidelines for this element. While the level of detail that has been provided is good, and is supported by the parameter plans (which are adoptable), the absence of an adoptable design code is of concern. The applicant and Council should discuss with GLA officers the level to which the design guidelines would be utilised in the detailed stages of design, and the mechanism that the Council will use to ensure that the design quality represented by the outline scheme would be applied in the detail.

43 In the internal areas of the scheme, the development would adopt a reasonably urban scale of development, with end flatted blocks capping views along streets dominated by lower-scaled houses. The levels of enclosure provided by the street spaces and squares would be appropriate, with a mix of mews and avenue streets.

Layout and landscape

44 The majority of the layout – block sizes, routes and location of uses – is supported. Other features of the scheme that are supported include the legibility of the main east-west route through the scheme and the potential for this to continue through the eastern block in the future. However, there is a concern that some of the ground floor dwellings, as set out within the detailed application, would not benefit from defensible space on all active frontages, which would be detrimental to the privacy and residential quality of these homes. Elsewhere around the site, the public/private division generally appears clear. The parking arrangements are satisfactory and the

45 Although discussion of landscaping materials at the meeting was brief, GLA officers support the continuation of landscape materials, as used in the existing phases, within the new development. The development would benefit from a legibility strategy to assist identification of routes through the site. The public realm layout across the site, and the landscaping concepts described within the detailed scheme, are of a high quality, and it is evident that the development achieves the applicant's aim of maximising green spaces and the quality of the routes within the scheme.

46 Although the character of the scheme partially relies on a high degree of permeability created by small blocks, these do not align, particularly along the western edge of the development where it abuts the first phases of GMV. As currently proposed, these would not connect, resulting in discordant and illegible routes between the old and new areas. While there is some benefit in creating a 'village' type layout that brings organic qualities of unevenness to an otherwise regular grid layout, there is a compromise between visibility along streets and the legibility of routes. GLA officers would prefer to see connected streets that are better aligned along the western boundary, which would enhance legibility throughout the scheme. These would not give rise to long, monotonous avenues as the street grid is curved along the alignment of the distributor road, and clearer views would be gained of facilities such as the primary school, and the layout would provide a clearer connection between the school and the new residential community and its associated retail uses. This was discussed at the pre-application stage but has not been incorporated into the outline scheme. The applicant must reconsider this prior to the application being referred back to the Mayor.

Appearance

47 The predominant material would be brick, and the use of different varieties/shades across the scheme is welcomed. Given the level of brick proposed the detail will be important to ensure that it does not appear bland or monotonously repetitive. The development guidelines for the outline phase of the application seem reasonable, but the version submitted with the application appears incomplete. As mentioned elsewhere in the report, the status of these, with regard to their adoption, should be clarified.

48 The detailed development proposals are welcome. The scheme would use the multicoloured approach of the first phases of GMV, albeit in a toned-down approach. Colour was a principle of the first phases of the scheme and its continuation into the new development is supported. The colour palette is also supported, and could assist legibility within the site, without being overbearing. The use of colour, and roof massing elements reminiscent of those in the earlier phases, assists in breaking down the massing of the otherwise unrelenting eastern barrier block. The use of glass separation elements between the main elements of the block is also welcomed. Should the protected wharf sites be developed in the future, these elements of the building could be removed, with the linkages of the site extended through the gaps in the barrier block, to the east.



Above: Internal (western, top) and external (eastern, bottom) elevations of the 'barrier' block proposed along the eastern edge of the development. Source: applicant's design and access statement.



Above: Visualisation of a mews street within the detailed phase of the scheme. Source: applicant's design and access statement.

Residential quality

49 Policy 3.5 of the London Plan introduces a new policy on the quality and design of housing developments. Part A of the policy states that housing developments should be of the highest quality internally, externally and in relation to the wider environment. Part C of the policy states that new dwellings should generally conform with the dwelling space standards set out in Table 3.3, have adequately sized rooms and convenient and efficient room layouts. Part E of the policy states that the Mayor will provide guidance on implementation of this policy including on housing

50 The main concern at the pre-application stage was the potential residential quality of the flats within the eastern barrier buildings, given their predominantly single-aspect arrangement and proximity of the industrial use and protected wharf. However, the design of the scheme demonstrates an acceptable response to the site and noise constraints, offering a well-considered layout, affording good views (especially from the upper floors), with a sufficient level of information to satisfy GLA officers' concerns.

51 The detailed layouts of other blocks demonstrate that residential quality would be sufficient. Residential cores would be legible within the context of the larger elevations. All flats would have private amenity areas, which is welcomed. The house layouts would be suitable, although as set out elsewhere within this section, there are concerns regarding the private/public interface on some street elevations, where there is a lack of defensible space between homes (with habitable room windows) and the street. As a grant-funded scheme, development will accord with the space standards as set out within the London Plan.

Access

52 Inclusive design principles – if embedded into the development and design process from the outset – help to ensure that all of us, including older people, disabled and deaf people, children and young people, can use the places and spaces proposed comfortably, safely and with dignity. The aim of London Plan policy 7.2 is to ensure that proposals achieve the highest standards of accessibility and inclusion (not just the minimum).

53 In line with London Plan policy 3.5, 100% of residential units should be designed to meet 'Lifetime Homes' standards (July 2010 version), and plans which demonstrate how each of the sixteen Lifetime Homes standards is addressed should be submitted with the application. The applicant has confirmed that this would be the case. In addition, at least 10% of new housing would be designed to be wheelchair accessible or easily adaptable for residents who are wheelchair users.

54 The site is relatively level, and gradients within the public realm would be less than 1 in 20. Paving within the public realm would be set out to identify crossing points and seating would also be provided in appropriate locations.

Safeguarded wharves / ambient noise

55 Safeguarded wharves are afforded the highest level of protection within the London Plan. Policy 7.26 'Increasing the use of the Blue Ribbon Network for freight transport' notes: "Development proposals adjacent or opposite safeguarded wharves should be designed to minimise the potential for conflicts of use and disturbance." It is important to note that wharf uses are wholly dependant on the tidal Thames, and therefore operational uses do occur at anytime, day or night. As discussed at the meeting, it is evident that the design has evolved to ensure protection of the wharf uses and the separation of land uses. However, as noted within the design comments above, the barrier block requires minor alterations to both ensure that it is a non-alienating feature of the design, and to safeguard against a potential future change of use of the wharf site.

56 The barrier nature of the eastern block has been specifically incorporated to ensure that the protected wharf uses would have the least potential impact on residential amenity, thereby minimising the potential for complaints by residents. The block creates an 'acoustic shadow' within which the lesser-scaled buildings would be relatively protected from noise emanating from the wharf activity.

57 The application is accompanied by various noise and other studies relevant to residential quality within the environmental statement, and an acoustic design report, which tests the design of the proposal against expected noise levels in various scenarios. The report also recommends appropriate mitigation measures to protect the amenity of residents. The elevations most affected by noise would need to be constructed to appropriate standards in line with the recommendations in the reports, and this should be incorporated within the conditions of an approval.

Transport and parking

58 Following pre-application discussions, residential car parking has been further revised, and is now proposed at a ratio of 0.45 spaces per unit. This corresponds to a decrease from the consented scheme, which previously allowed for 0.7 spaces per unit, and also from the 0.5 spaces per unit proposed at the pre-application stage. While this is supported as being in line with the London Plan standards, it is recommended that a monitoring and review mechanism is included in the Travel Plan and section 106 agreement to allow parking space to be redesigned as cycle parking, should demand for car parking be lower than expected.

59 An additional 102 parking spaces (including 12 car club spaces) are proposed for the other land uses on site. It should be clarified whether the 30 yacht club spaces are intended to replace existing provision. Additionally, Transport for London (TfL) questions the need for 47 commercial and retail spaces, particularly as this level could be considered to be in excess of the London Plan standards for a site with a PTAL of 3/4. Similarly, as the retail aspect of the development is anticipated to serve a local need on the Peninsula, TfL would question whether any dedicated parking is required. As such further information is required to justify the need for the high level of provision proposed for these uses.

60 The applicant proposes a car parking management plan to address on-street parking issues, and TfL is supportive of this being secured by condition. This should also address management issues associated with the commercial aspect of the development. The disabled parking provision (10% of all spaces) and car club commitment are also supported, although electric vehicle charging points for all land uses will also need to be provided in accordance with the standards contained in London Plan policy 6.13. All should be secured for the site by condition.

61 The submitted trip generation exercise has been undertaken in accordance with the already consented application, and is therefore considered acceptable. While the impact on the closest junctions on the TLRN has not been taken into consideration, it is nevertheless noted that this was also the case for the consented scheme. Given the above, TfL accepts that the transport impact of the development is unlikely to be greater than that associated with the already consented scheme.

62 As part of the already consented application for the site, contributions were secured towards public transport enhancements. TfL therefore requests that the £740,000 previously secured towards bus capacity enhancements be retained as part of this revised application. Given the current status of the former Greenwich Waterfront Transit (GWT) scheme, which would have directly benefitted the site, TfL instead requests that the £400,000 contribution previously secured be redirected towards other public transport improvements in the area, in accordance with London Plan policies 6.7 and 8.2. Given the site location, this could include necessary bus priority measures in the area and / or river services. The latter of these could include infrastructure

63 Cycle parking is being proposed in accordance with London Plan standards, which is supported. This equates to the provision of 2,282 cycle parking spaces for the residential aspect of the development, with a further 28 spaces provided for the commercial aspect of the development. It should be ensured however that these spaces are in a secure and covered location, and that locker and changing facilities are provided for those members of staff wishing to cycle to work. While it is noted that good cycle links are already in place on the Peninsula, TfL would be supportive of the applicant investigating opportunities to improve cycle access to and from the site, particularly to link to the nearby Cycle Superhighway Route 4 (CS4) along Woolwich Road, which is due to open by 2015. It is also noted that as part of the original 2005 outline consent, a sum of money was secured to improve cycle parking facilities at North Greenwich station, and as the facilities at the station are already often full to capacity, TfL would request that a similar contribution be secured as part of this revised application, in accordance with London Plan policy 6.9.

64 TfL supports the enhancements brought to the Thames Path as part of the Phase 1 and 2 proposals, and would request that the funding previously secured towards the maintenance and upgrade of this important walking and cycling route be retained as part of this revised application. A pedestrian audit of the local area has been carried out as requested at the pre-application stage, which is supported. This shows that the majority of pedestrian links within the site are of acceptable quality, although one crossing has been identified as being unsafe. Some links outside the site also scored poorly. As such, TfL would recommend that in accordance with London Plan policy 6.10, the improvements identified as being required, are secured through either the s106 or s278 agreement, in particular the crossing point on West Parkside which would be used by residents of the proposed development.

65 It is noted that wayfinding will be improved via a signage and wayfinding strategy that covers the whole of the GMV. This is supported, and TfL recommends that any improvements are secured either by condition or through the s106 agreement. While it is acknowledged that the Peninsula may have its own signage strategy in place, it should be noted that TfL's preferred method of signage is a Legible London-compliant scheme.

66 A Framework Travel Plan has been submitted for the site, with the aim of the individual land uses developing their own Travel Plans within the context of the site-wide plan, which is acceptable. As the Travel Plan contains all the information considered relevant for the planning stage, TfL recommends that it is secured, managed, monitored and enforced through the s106 agreement. In accordance with London Plan policy 6.3, TfL would additionally recommend that both a construction logistics plan (CLP), and a delivery and servicing plan (DSP) be secured for the site by condition.

67 In summary, while TfL is broadly satisfied that the impacts of the proposed development are similar to the already consented scheme, additional information, as further detailed above, is however required to ensure that appropriate mitigation measures for the site have been secured, in accordance with London Plan policies 6.3, 6.7, 6.9, 6.10, 6.13 and 8.2.

Biodiversity

68 According to the applicant's environmental assessment, the ecology park is well populated with invertebrate and bird species. Protected bat species have also been sited. Although

69 The existing ecology park on the Metropolitan Open Land (MOL) would be retained, with a new swale area between the development and the MOL providing a transitional zone. This is welcomed. Although some trees would be lost from this area, the landscaping proposals seek to replace these with native species that would support local bird life. Clearance and development of the site is unlikely to have a long-lasting detrimental impact on local biodiversity, and the incorporation of suitable features into the design, such as the provision of biodiverse roofs on buildings, and location of bat and bird boxes, is supported. The detailed design should ensure that there would be suitable mitigation against light pollution and spillage.

Sustainable development

70 Various sustainability elements would be built into the development, which is expected to exceed Code for Sustainable Homes level 4.

71 The applicant has broadly followed the energy hierarchy. Sufficient information has been provided to understand the proposals as a whole.

Energy efficiency standards (be lean)

72 A range of passive design features and demand reduction measures are proposed to reduce the carbon emissions of the proposed development. Both air permeability and heat loss parameters will be improved beyond the minimum backstop values required by building regulations. Other features include high efficacy lighting and mechanical ventilation heat recovery (MVHR). The demand for cooling will be minimised through solar shading.

73 The development is estimated to achieve a reduction of 110 tonnes per annum (18%) in regulated carbon dioxide emissions, compared with a 2010 Building Regulations compliant development.

District heating (be clean)

74 The applicant has identified that there is a probability that the Thames Gateway Heat Network (TGHN) could be extended to the south of the river to within the vicinity of the development and is considering the possibility of connecting to the network in future. Initial discussions have already been undertaken with Greenwich Council and Greenwich Peninsula Regeneration Limited (GPRL) with a view to connecting in to the extended network. The applicant has provided a commitment to ensuring that the development is designed to allow future connection to the district heating network should it become available.

75 The applicant is proposing to install a site heat network, but will need to confirm that all apartments and non-domestic building uses will be connected. The site heat network would be supplied from a single energy centre (Energy Centre One), which would have an area of 365 sq.m. and be located at the north of the site. This would be an interim arrangement, and when all five parcels of the development are constructed, the energy centre would transfer the supply for the heat network to Energy Centre Two (to be located at the south side of the site).

Combined heat and power (CHP)

76 The applicant is proposing to install 175W_e gas fired CHP units in Energy Centre One as the lead heat source for the site heat network. The CHP is sized to provide the domestic hot water load, as well as a proportion of the space heating. A reduction in regulated carbon dioxide

Renewable energy technology (be green)

77 The applicant has investigated the feasibility of a range of renewable energy technologies and is proposing to install 950m² solar photovoltaic (PV) panels on the roof of four of the blocks. A reduction in regulated carbon dioxide emissions of 58 tonnes per annum (18%) would be achieved through this third element of the energy hierarchy.

Overall carbon savings

78 The estimated regulated carbon emissions of the development are 255 tonnes of carbon dioxide per year, after the cumulative effect of energy efficiency measures, CHP and renewable energy has been taken into account. This equates to a reduction of 372 tonnes of carbon dioxide per year in regulated emissions, compared with a 2010 Building Regulations compliant development, equivalent to an overall saving of 59%. The carbon dioxide savings exceed the targets set within Policy 5.2 of the London Plan.

Community Infrastructure Levy

79 In accordance with London Plan *policy 8.3*, the Mayor of London proposes to introduce a London-wide Community Infrastructure Levy (CIL) that will be paid by most new development in Greater London. Following consultation on both a Preliminary Draft, and then a Draft Charging Schedule, the Mayor has formally submitted the charging schedule and supporting evidence to the examiner in advance of an examination in public, which was held in December 2011. Subject to the legal process, the Mayor intends to start charging on **1 April 2012**. Any development that receives planning permission after that date will have to pay, including:

- Cases where a planning application was submitted before 1 April 2012, but not approved by then.
- Cases where a borough makes a resolution to grant planning permission before 1 April 2012 but does not formally issue the decision notice until after that date (to allow a section 106 agreement to be signed or referral to the Secretary of State or the Mayor, for example),.

80 The Mayor is proposing to arrange boroughs into three charging bands with rates of £50 / £35 / £20 per square metre of net increase in floor space respectively. The proposed development is within the Royal Borough of Greenwich, where the proposed Mayoral charge is £35 per square metre. More details are available via the GLA website <http://london.gov.uk/>.

81 Within London both the Mayor and boroughs are able to introduce CIL charges and therefore two distinct CIL charges may be applied to development in future. At the present time, borough CIL charges for Redbridge and Wandsworth are the most advanced. The Mayor's CIL will contribute towards the funding of Crossrail.

Local planning authority's position

82 It is understood by GLA officers that the Council is likely to recommend that the proposal be approved, although officer-level discussions regarding affordable housing provision are ongoing.

Legal considerations

83 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Council must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged, or direct the Council under Article 6 of the Order to refuse the application, or issue a direction under Article 7 of the Order that he is to act as the local planning authority for the purpose of determining the application. There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

Financial considerations

84 There are no financial considerations at this stage.

Conclusion

85 London Plan policies on the mix of uses, housing and affordable housing, tall buildings and views, urban design, density, access, safeguarded wharves and ambient noise, transport and parking, biodiversity, and sustainable development relevant to this application. The application complies with some of these policies but not with others, for the following reasons:

- **Mix of uses:** The principle of a residential-led development is appropriate.
- **Housing:** The proposed levels of housing, and the level of play space to be provided, is in accordance with the London Plan.
- **Affordable housing:** The tenure split is appropriate, but the low level of family housing across the scheme is of concern and not in accordance with the London Plan.
- **Tall buildings / views:** Although the development would have an impact on views from Metropolitan Open Land and the river, its negative impacts are largely mitigated by the proposed design.
- **Urban design / density:** The proposed density is in accordance with the London Plan. The design principles are supported, although there are some outstanding issues, particularly the alignment of streets and blocks on the western side of the masterplan, and the connectivity of the primary school in the first phase to the new community.
- **Access:** The proposal complies with the London Plan, through meeting the Lifetime Homes standards and incorporating other features where required.
- **Ambient noise / safeguarded wharves:** The proposal has been designed to provide an acoustic screen between the protected wharves and new homes.
- **Transport and parking:** Although the development is acceptable in principle, further information is required.
- **Biodiversity:** The proposal provides appropriate mitigation measures with regards to local ecology.
- **Sustainable development:** The proposal has followed the energy hierarchy as set out in the London Plan and would provide a good level of carbon savings.

86 Whilst the application is broadly acceptable in strategic planning terms, on balance, the application does not comply with the London Plan.

87 The following changes might, however, remedy the above-mentioned deficiencies, and could possibly lead to the application becoming compliant with the London Plan:

- **Affordable housing:** Further testing of the applicant's viability assessment to determine whether additional affordable housing could be provided (especially family housing), and provision of opportunities for re-assessment of the viability prior to the commencement of each parcel of development.
- **Urban design:** Confirmation of the status of the design guidelines and a firm commitment to achieving a suitably high standard of design quality at the detailed stage. Commitment to a reconsideration of the connectivity of the scheme, through a redesign of the block layout on the western edge of the scheme. Redesign or justification of the potential conflict between public and private space as a result of the absence of defensible space in front of dwellings abutting the street.
- **Ambient noise / safeguarded wharves:** Incorporation of suitable mitigation measures within the detailed and future detailed design phases, as set out in the acoustic design report, within the conditions of approval or subject a legal agreement.
- **Transport / parking:** Monitoring of parking standards and use to be incorporated within the travel plan and section 106 agreement, a review and justification of retail parking provision. Provision of electric charging points and passive provision in accordance with the London Plan. Contributions as set out in paragraph 62 of this report, and improvements to the Thames Path as set out in paragraph 64. Commitments for improved cycle parking at North Greenwich station, site-wide signage, a construction logistics plan and a delivery and servicing plan.
- **Sustainable development:** The applicant should confirm that all apartments and non-domestic building uses will be connected to the heat network.

for further information, contact Planning Decisions Unit:

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